

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Lesley Henry	Team: Team # 5	CCRB Case #: 200918943	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☒ O.L.	☐ Injury
Incident Date(s) Thursday, 12/03/2009 2:20 PM	Location of Incident: § 87(2)(b) and the 73rd Precinct stationhouse	Precinct: 73	18 Mo. SOL 6/3/2011	EO SOL 6/3/2011	
Date/Time CV Reported Sun, 12/06/2009 4:02 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Fri, 12/11/2009 2:37 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Andrew Kamna	24865	943423	073 PCT
2. SGT Bertha Torres	00248	926219	073 PCT
3. POM Erick Flores	12470	943243	PSA 7

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. LT Michael Dipane	00000	899140	073 PCT
2. POF Magali Malave	26324	945947	073 PCT
3. POM Steven Jehl	12537	945852	073 PCT
4. POM Ryan Rodriguez	15722	940659	073 PCT
5. POM Jean Bellevue	15429	946774	073 PCT

Officer(s)	Allegation	Investigator Recommendation
A.SGT Bertha Torres	Discourtesy: On December 3, 2009, at § 87(2)(b) in Brooklyn, Sgt. Bertha Torres spoke obscenely and/or rudely to § 87(2)(b) and § 87(2)(b)	§ 87(2)(b)
B.POM Andrew Kamna	Force: On December 3, 2009, at § 87(2)(b) in Brooklyn, PO Andrew Kamna used physical force against § 87(2)(b) § 87(2)(b) § 87(2)(b) and § 87(2)(b)	§ 87(2)(b)
C.SGT Bertha Torres	Off. Language: On December 3, 2009, at § 87(2)(b) in Brooklyn, Sgt. Bertha Torres made remarks to § 87(2)(b) based upon race.	§ 87(2)(b)
D.SGT Bertha Torres	Abuse: On December 3, 2009 and December 7, 2009, at the 73rd Precinct stationhouse, Sgt. Bertha Torres threatened to arrest § 87(2)(b) § 87(2)(b) and § 87(2)(b)	§ 87(2)(b)

Officer(s)	Allegation	Investigator Recommendation
E.POM Erick Flores	Force: On December 3, 2009, at the 73rd Precinct stationhouse, PO Erick Flores used physical force against § 87(2)(b) § 87(2)	
F.POM Erick Flores	Force: On December 3, 2009, at the 73rd Precinct stationhouse, PO Erick Flores used a chokehold against § 87(2)(b) § 87(2)	

Case Summary

On December 6, 2009, § 87(2)(b) filed a complaint by phone with the Internal Affairs Bureau. IAB log 09-62038 was referred to the CCRB and received on December 11, 2009 (encl. 4).

On December 3, December 6 and December 7, 2009, officers from the 73rd Precinct stationhouse interacted with § 87(2)(b), § 87(2)(b), § 87(2)(b) and § 87(2)(b).

The following allegations resulted:

- **Allegation A – Discourtesy:** On December 3, 2009, at § 87(2)(b) in Brooklyn, Sgt. Bertha Torres spoke obscenely and/or rudely to § 87(2)(b), § 87(2)(b) and § 87(2)(b).
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
- **Allegation B – Force:** On December 3, 2009, at § 87(2)(b) in Brooklyn, PO Andrew Kamna used physical force against § 87(2)(b), § 87(2)(b), § 87(2)(b) and § 87(2)(b).
§ 87(2)(g)
§ 87(2)(g)
- **Allegation C – Offensive Language:** On December 3, 2009, at § 87(2)(b) in Brooklyn, Sgt. Bertha Torres made remarks to § 87(2)(b) based upon race.
§ 87(2)(g)
§ 87(2)(g)
- **Allegation D – Abuse:** On December 3, 2009 and December 7, 2009, at the 73rd Precinct stationhouse, Sgt. Bertha Torres threatened to arrest § 87(2)(b) and § 87(2)(b).
§ 87(2)(g)
§ 87(2)(g)
- **Allegation E – Force:** On December 3, 2009, at the 73rd Precinct stationhouse, PO Erick Flores used physical force against § 87(2)(b).
- **Allegation F – Force:** On December 3, 2009, at the 73rd Precinct stationhouse, PO Erick Flores used a chokehold against § 87(2)(b).
§ 87(2)(g)
§ 87(2)(g)

Results of Investigation

Civilian Statement(s)

Complainant: § 87(2)(b)

- § 87(2)(b) § 87(2)(b) is a § 87(2)(b) Hispanic male, 5'8" tall, 160 lbs, with brownish-blond hair and green eyes. § 87(2)(b) § 87(2)(b) at § 87(2)(b) in Brooklyn.

Telephone statement

On December 24, 2009 § 87(2)(b) provided a telephone statement § 87(2)(g)

CCRB Testimony

On December 30, 2009, § 87(2)(b) was interviewed at the CCRB (encl. 7A-C). On December 3, 2009, at approximately 2:20 p.m., § 87(2)(b) was shopping inside of the § 87(2)(b) store located at § 87(2)(b) in Brooklyn. He was accompanied by his father, § 87(2)(b) § 87(2)(b), his uncle, § 87(2)(b) his wife, § 87(2)(b) and their three young children, ages § 87(2)(b). § 87(2)(b) and § 87(2)(b) § 87(2)(b) observed a female take off her clothing and put on clothes from the store racks. The employees of the store called the police and three uniformed officers arrived. § 87(2)(b) and his father observed the officers place the female, identified through investigation as § 87(2)(b) under arrest. The officers slammed § 87(2)(b) on the ground and one officer put his knee on her neck. § 87(2)(b) § 87(2)(b) commented in Spanish that the force used against the § 87(2)(b) was unnecessary and called the female officer an "Abusadora," which means "abuser." § 87(2)(b) described this officer as a white female, 5'5" tall, 130 lbs, with black hair, and she was identified through investigation as Sgt. Bertha Torres. Sgt. Torres stated, "If you don't like the way we fucking arrest then you shouldn't have called us." § 87(2)(b) § 87(2)(b) put his hands together as if handcuffed and asked in Spanish if the officer was going to arrest him as well. Another officer, whom § 87(2)(b) described as a white male, 5'9" tall, 150 lbs, with black hair and approximately 27-years old, who was identified through investigation as PO Andrew Kamna, approached § 87(2)(b) § 87(2)(b) to arrest him. § 87(2)(b) immediately pulled his father's hands down while telling the officers to continue with their arrest of § 87(2)(b).

PO Kamna immediately punched § 87(2)(b) on the left side of his head near his temple. § 87(2)(b) was surprised and he "lost it," and fought with PO Kamna. § 87(2)(b) could not recall where he hit PO Kamna or how many times he struck him. He did not recall whether PO Kamna hit him again after the first blow. A black male officer, whom § 87(2)(b) described as 6'2" tall, 180 lbs, with a foreign accent, grabbed him by his shoulders and removed him from PO Kamna. This officer was identified through investigation as PO Jean Bellevue. PO Kamna rushed towards § 87(2)(b) and swung at him; however, § 87(2)(b) § 87(2)(b) grabbed PO Kamna's arms and prevented § 87(2)(b) from being hit. § 87(2)(b) removed himself from PO Bellevue's grip to help his father because he observed PO Kamna punch § 87(2)(b) § 87(2)(b) more than once. § 87(2)(b) rushed towards PO Kamna and fought him off of his father; however, he did not recall his exact actions. § 87(2)(b) did not recall being placed in handcuffs or how long the physical interaction lasted.

Several unidentified officers arrived at the location and § 87(2)(b) and § 87(2)(b) were also placed under arrest; however, PO Bellevue said they should be released and the officers complied. § 87(2)(b) and § 87(2)(b) § 87(2)(b) were taken to the 73rd Precinct stationhouse and placed in holding cells. An officer whom § 87(2)(b) described as a dark-skin Hispanic male, 5'9" tall, 160 lbs, with low cut hair and a scar on his scalp and face, and approximately 30 years old, whose badge read, "PO Frost," removed § 87(2)(b) from the cell and pushed him up against the wall in a bathroom. This officer was identified through investigation as PO Erick Flores. PO Flores placed his elbow into the front of § 87(2)(b)'s neck and restricted his breathing for approximately one minute. Another officer whom § 87(2)(b) described as a white male, 5'9" tall, 190-200 lbs, and approximately 29-years old stopped the situation and pulled § 87(2)(b) away. § 87(2)(b) and § 87(2)(b) § 87(2)(b) remained in police custody until they were released from Brooklyn Central Booking at approximately 11:00 p.m. the following night.

On December 5, 2009, § 87(2)(b) went to § 87(2)(b) because he felt pain to his back and left shoulder. § 87(2)(b) § 87(2)(b) also complained of pain to his back and knees; however, he wished to pray away the pain at church and he did not seek medical treatment.

On December 6, 2009, § 87(2)(b) and § 87(2)(b) § 87(2)(b) went to church, leaving § 87(2)(b) home alone at § 87(2)(b) in Brooklyn. § 87(2)(b) § 87(2)(b) and § 87(2)(b) returned home and their next door neighbor informed them that § 87(2)(b) had been arrested. § 87(2)(b) § 87(2)(b) observed an officer with a scar on his face at the location in the hallway. § 87(2)(b) § 87(2)(b) entered his home and noticed the cushions on the sofa and a mattress in the bedroom had been overturned. Items were removed from the kitchen cabinets and clothes were taken out of a luggage. The house was a mess; however, nothing, including the lock on the door had been broken. § 87(2)(b) suffers from memory loss due to a past stroke and was unable to tell § 87(2)(b) what happened.

On December 7, 2009, at an unknown time during the afternoon, § 87(2)(b) went to the 73rd Precinct stationhouse to get information on § 87(2)(b) December 6, 2009 arrest. Sgt. Torres stated, "Get out of the fucking precinct before I have you arrested." § 87(2)(b) was then escorted outside by an unidentified officer whom he could not describe who told him to find another way to deal with his situation.

Victim: § 87(2)(b)

- § 87(2)(b) is a § 87(2)(b) Hispanic female, 5'5" tall, 170 lbs, with black hair and brown eyes. § 87(2)(b) is § 87(2)(b)'s wife; § 87(2)(b)

CCRB Testimony

On December 30, 2009, § 87(2)(b) was interviewed at the CCRB (encl. 9A-C). On December 3, 2009, at approximately 2:20 p.m., § 87(2)(b) observed a woman put on clothing from within the § 87(2)(b) store. The employees called the police and two officers, identified through investigation as Sgt. Bertha Torres and PO Andrew Kamna arrived and placed a female identified through investigation as § 87(2)(b) under arrest. The officers slammed § 87(2)(b) on the floor and § 87(2)(b) felt bad for her, but continued shopping. § 87(2)(b)

§ 87(2)(b) heard a commotion behind her and when she looked she saw her father-in-law, § 87(2)(b) and her husband, § 87(2)(b) on the floor wrestling with the officers. § 87(2)(b) did not see PO Kamna punch § 87(2)(b) in the face; however, PO Kamna was on top of § 87(2)(b) § 87(2)(b) engaged in a struggle. § 87(2)(b) ran up and down the store frantically trying to determine what happened and could not fully describe what actions took place during the struggle between her husband, father-in-law and the police officers. PO Kamna pushed § 87(2)(b) in the chest with two hands, but she was not injured. It took the officers approximately ten minutes to handcuff § 87(2)(b) and § 87(2)(b) § 87(2)(b).

§ 87(2)(b) asked why her family was being arrested and a Hispanic female officer, identified as Sgt. Bertha Torres told § 87(2)(b) “Fuck you and fuck your family.” § 87(2)(b) saw Sgt. Torres’ name on her badge at the time and place of occurrence. Sgt. Torres informed an unidentified officer to place § 87(2)(b) into handcuffs and he complied. § 87(2)(b) asked why she was being arrested and Sgt. Torres stated, “Because you don’t shut the fuck up.” Sgt. Torres stated, “Y’all fucking Puerto Ricans are all the same.” Sgt. Torres spoke to § 87(2)(b) in English; however, she stated she understood Spanish.

§ 87(2)(b) was released from the location and she walked to the stationhouse where § 87(2)(b) and § 87(2)(b) § 87(2)(b) had been taken. Sgt. Torres saw § 87(2)(b) at the stationhouse and she said, “Y’all take that fucking bitch outta here before I put handcuffs on her and put her in the back,” and § 87(2)(b) left the stationhouse and waited outside.

An officer, who she referred to as “Captain Dipane,” exited the stationhouse and § 87(2)(b) explained the situation to him. This officer was identified through investigation as Lt. Michael Dipane. Lt. Dipane re-entered the stationhouse and § 87(2)(b) observed the officers from outside. An officer, whom § 87(2)(b) identified as PO Ryan Rodriguez, exited the stationhouse and told § 87(2)(b) that Lt. Dipane had requested the video from the § 87(2)(b) store and that he had seen what occurred. § 87(2)(b) requested Sgt. Torres’ shield number and told PO Rodriguez that she wished to file a complaint; however, PO Rodriguez advised § 87(2)(b) not to file a complaint against Sgt. Torres because she was his supervisor.

On December 6, 2009, § 87(2)(b) returned home from church with her family and observed that their apartment had been searched and § 87(2)(b) had been arrested.

Witness: § 87(2)(b)

- § 87(2)(b) is a black female, 5’5” tall and is the manager of a § 87(2)(b) Store located at § 87(2)(b) in Brooklyn.

Telephone Statement

On December 30, 2009, § 87(2)(b) provided a telephone statement to the CCRB (encl. 11).
§ 87(2)(g)

CCRB Testimony

On February 8, 2010, § 87(2)(b) was interviewed at the § 87(2)(b) store located at § 87(2)(b) in Brooklyn (encl. 12A-B). On December 3, 2009, at approximately 2:20 p.m., § 87(2)(b) was working inside of the store when she observed a female putting on clothing from the

racks. § 87(2)(b) called the police and three officers responded. A female officer, identified through investigation as Sgt. Bertha Torres, handcuffed the female, identified through investigation as § 87(2)(b)

An unknown male customer called out to § 87(2)(b) and she went into the basement to collect sneakers for him. When she returned, she observed a “scuffle” between two male officers and two male customers. The two customers were identified through investigation as § 87(2)(b) and § 87(2)(b). A uniformed officer, described as a white male, 5’6” tall, and 160 lbs, who was identified as PO Andrew Kamna, was lying down on his back and § 87(2)(b) was on top of him. § 87(2)(b) was behind § 87(2)(b). The other officer, described as a black male, 6’5” tall and 185 lbs, and identified as PO Bellevue, pulled § 87(2)(b) and § 87(2)(b) away from PO Kamna. § 87(2)(b) did not observe any punches thrown by anyone and no one was kicked. The scuffle consisted of the officers and civilians grabbing one another by the arms. § 87(2)(b) was standing approximately 10 feet away, but focused most of her attention on the merchandise because she did not want people to use the commotion as an opportunity to steal.

Attempts to Contact Civilians

On December 24, 2009, after numerous contacts were made to the § 87(2)(b) family to schedule them to provide sworn statements, § 87(2)(b) expressed that § 87(2)(b) is not capable of participating in the investigation due to mental illness and that § 87(2)(b) did not wish to participate in the investigation.

NYPD Statement(s):

Subject Officer: SGT. BERTHA TORRES

- *Sgt. Bertha Torres is a § 87(2)(b) old Hispanic female, 5’2” tall, 120 lbs, with brown hair and eyes. On December 3, 2009, Sgt. Torres worked in uniform from 10:00 a.m. to 3:57 p.m. assigned as the Impact Sergeant for the Business District. She worked with PO Andrew Kamna in a marked vehicle. On December 6, 2009, she was assigned to the Business District from 10:00 a.m. until 6:57 p.m. On December 7, 2009, she was assigned to the Business District from 8:00 a.m. until 4:57 p.m.*

Memo Book

Sgt. Torres’ memo book entries indicate that at 2:00 p.m. she arrived at § 87(2)(b) in Brooklyn regarding a female shoplifter. At 2:23 p.m, three individuals were arrested (encl. 14A-C).

CCRB Testimony

On April 28, 2010, Sgt. Bertha Torres was interviewed at the CCRB (encl. 15A-B). Sgt. Torres speaks Spanish and English fluently. On December 3, 2009, at approximately 2:00 p.m., Sgt. Torres and PO Kamna were conducting routine patrol when a security guard from the § 87(2)(b) store located at § 87(2)(b) in Brooklyn, stopped them and informed them that an unknown female inside of the location was shoplifting. The investigation identified the female as § 87(2)(b). Sgt. Torres and PO Kamna entered the store along with PO Jean Bellevue, who was also in the vicinity. The officers attempted to remove a retail jacket from § 87(2)(b) before placing her in handcuffs; however, § 87(2)(b), § 87(2)(b), § 87(2)(b) and § 87(2)(b) were in the way and they were asked to step back. The family did not move and one of them stated in Spanish, “You’re going to kill her,” and

“You’re choking her.” Sgt. Torres denied stating, “If you don’t like the way we fucking arrest, then you shouldn’t have called us.” She handcuffed § 87(2)(b) and proceeded to escort her out of the store. Sgt. Torres did not instruct any of the officers to place anyone else under arrest. She heard a commotion behind her; however, her vision was blocked by structures inside of the store and she did not see what occurred. She radioed for assistance and continued out of the store with § 87(2)(b) PO Kamna later informed Sgt. Torres that he had been assaulted by § 87(2)(b) § 87(2)(b) and § 87(2)(b).

After placing § 87(2)(b) in a patrol car, Sgt. Torres returned inside and spoke with § 87(2)(b) in English asking her what happened. § 87(2)(b) said, “This is wrong,” and that said she would call a lawyer. Sgt. Torres denied stating, “Fuck you and fuck your family,” or using any profanity when speaking with § 87(2)(b). Sgt. Torres denied stating, “Y’all fucking Puerto Ricans are all the same.” § 87(2)(b) was released at the location; however, later arrested in relation to the incident and § 87(2)(b) § 87(2)(b) and § 87(2)(b) were taken to the stationhouse. Sgt. Torres denied threatening to arrest § 87(2)(b) at any time. Sgt. Torres did not have any subsequent interactions with § 87(2)(b) § 87(2)(b) or § 87(2)(b) after their arrival at the stationhouse.

On December 6, 2009, Sgt. Torres accompanied two officers whom she did not recall to § 87(2)(b) in Brooklyn. A complaint report had been prepared regarding § 87(2)(b) conduct observed on the video footage of the incident that occurred on December 3, 2009. Sgt. Torres remained inside of the patrol car while the two unidentified officers entered the building. They remained inside for approximately three minutes and exited with § 87(2)(b) § 87(2)(b). § 87(2)(b) was observed by PO Kamna in a “show up,” and PO Kamna identified him as the individual who assaulted him and § 87(2)(b) was placed under arrest. Sgt. Torres did not know whether the unidentified officers entered or searched § 87(2)(b) apartment.

On December 7, 2009, § 87(2)(b) appeared at the stationhouse by the complaint window; however, Sgt. Torres did not know why he was there as she did not interact with him. Sgt. Torres denied stating, “Get him out of the fucking precinct before I have him arrested.” Sgt. Torres did not recall who § 87(2)(b) had spoken with at the stationhouse; she only saw him briefly in passing.

Subject Officer: PO ANDREW KAMNA

- PO Andrew Kamna is a § 87(2)(b) old white male, 5’9” tall, 135 lbs, with brown hair and eyes. On December 3, 2009, PO Kamna was assigned as the sergeant’s operator for Sgt. Bertha Torres and worked in uniform from 10:30 a.m. to 7:05 p.m. § 87(2)(b)

Memo Book

PO Kamna’s memo book entries indicate that at 2:20 p.m. three people were arrested at § 87(2)(b) § 87(2)(b)

CCRB Testimony

On April 28, 2010, PO Kamna was interviewed at the CCRB (encl. 18A-B). On December 3, 2009, at approximately 2:20 p.m., PO Kamna and Sgt. Torres were stopped and informed that

a

woman was inside of § 87(2)(b) was behaving in an irrational manner. PO Kamna and Sgt. Torres entered the store with PO Jean Bellevue, who observed them entering and offered his assistance. Sgt. Torres and PO Kamna attempted to remove clothing from the female, identified through investigation as § 87(2)(b) in order to handcuff her; however, § 87(2)(b) flailed her arms and resisted arrest. Three males, identified through investigation as § 87(2)(b) § 87(2)(b) and § 87(2)(b) along with a female, identified through investigation as § 87(2)(b) were standing in close proximity to where § 87(2)(b)'s arrest took place. The § 87(2)(b) family yelled in Spanish and Sgt. Cruz responded; however, PO Kamna did not understand or recall any of the statements. PO Kamna does not speak or understand Spanish. He did not hear or recognize any profanity if it had been used. PO Kamna told § 87(2)(b) § 87(2)(b) to step away several times; however, he did not comply and stepped closer.

Sgt. Torres escorted § 87(2)(b) to the front of the store and PO Kamna decided to place § 87(2)(b) § 87(2)(b) under arrest for refusing to comply with his direct order to step back. PO Kamna grabbed § 87(2)(b) § 87(2)(b) by the arm to place him in handcuffs and § 87(2)(b) § 87(2)(b) knocked PO Kamna's hand away from § 87(2)(b) § 87(2)(b)'s arm. One of the individuals pushed PO Kamna; however, he did not see which one. PO Kamna did not know what would happen next as he was surrounded with § 87(2)(b) to his left, § 87(2)(b) § 87(2)(b) in front and § 87(2)(b) § 87(2)(b) at his right. PO Kamna reacted quickly with one or two punches directed at § 87(2)(b) § 87(2)(b). PO Kamna did not recall where he made contact with § 87(2)(b) § 87(2)(b). It was PO Kamna's intention to create more space between himself and the three males.

After PO Kamna punched § 87(2)(b) § 87(2)(b) he was grabbed, pulled to the ground, punched and kicked in the head by § 87(2)(b) § 87(2)(b) and § 87(2)(b) § 87(2)(b). § 87(2)(b) § 87(2)(b) pulled PO Kamna towards the ground by his collar and he pushed her away from him, after which, he was successful in placing § 87(2)(b) § 87(2)(b) in handcuffs. PO Kamna denied punching § 87(2)(b) § 87(2)(b) and stated he used an "arm bar," placing his arm behind his back. PO Kamna did not recall how long the physical interaction lasted. PO Bellevue tried to keep people away from the area. Additional officers arrived and § 87(2)(b) § 87(2)(b) was also arrested.

Sgt. Torres returned; however, PO Kamna did not hear any of the discourteous statements alleged to have been made by Sgt. Torres. PO Kamna felt light headed, dizzy and his vision was blurred with spots when he exited the store. Later the same day, he went to § 87(2)(b) § 87(2)(b) where he was informed that he sustained a contusion to his head. § 87(2)(b) § 87(2)(b)

Subject Officer: PO RYAN RODRIGUEZ

- PO Ryan Rodriguez is a § 87(2)(b) old Hispanic male, 5'9" tall, 165 lbs, with brown hair and eyes. On December 3, 2009, PO Rodriguez worked in uniform alone from 10:30 a.m. to 4:05 a.m. the following day. He was assigned to foot post 17 with marked scooter 424. On December 6, 2009, PO Rodriguez worked alone in uniform from 10:30 a.m. to 7:05 p.m. assigned to foot post 6. On December 7, 2009, he worked alone in uniform from 10:30 a.m. to 7:05 p.m. assigned to foot post 3.

Memo Book

PO Rodriguez's memo book entries indicate that on December 3, 2009 at 2:45 p.m., he was assigned three arrests: § 87(2)(b), § 87(2)(b) and § 87(2)(b) whose arrests took place at 2:20 p.m. at § 87(2)(b). At 5:10 p.m., PO Rodriguez released § 87(2)(b), § 87(2)(b) and § 87(2)(b)'s property to § 87(2)(b). On December 6, 2009, at 2:23 p.m., § 87(2)(b) was arrested § 87(2)(a) 160.50 at the 73rd Precinct stationhouse. On December 7, 2009, at 12:25 p.m., PO Rodriguez returned to the command because his vehicle had mechanical problems.

Criminal Court Complaints for § 87(2)(b) and § 87(2)(b)

§ 87(2)(b)

The Criminal Court Complaint indicates that PO Kamna informed PO Rodriguez that while arresting § 87(2)(b), § 87(2)(b) and § 87(2)(b), § 87(2)(b) refused to obey his order to "step back." PO Kamna attempted to place § 87(2)(b), § 87(2)(b) and § 87(2)(b) under arrest and they "flailed" their arms. § 87(2)(b), § 87(2)(b) and § 87(2)(b) then repeatedly punched and kicked PO Kamna in the head and as a result PO Kamna suffered swelling and redness to his face (encl. 20A-E).

Arrest Report § 87(2)(b)

The report indicates that § 87(2)(b) prevented PO Kamna from effectuating a lawful arrest by removing PO Kamna's hands away from another person. § 87(2)(b) was charged § 87(2)(a) 160.50

CCRB Testimony

On July 22, 2010, PO Ryan Rodriguez was interviewed at the CCRB (encl. 23A-C). On December 3, 2009, at approximately 2:20 p.m., § 87(2)(b) was arrested by Sgt. Torres for shop lifting. PO Rodriguez arrived at the location in response to an officer's call for assistance. § 87(2)(b), § 87(2)(b), § 87(2)(b) and § 87(2)(b) were already in handcuffs and seated inside of patrol cars. PO Rodriguez did not observe any of the force used to apprehend any of the arrested individuals.

PO Rodriguez did not recall Sgt. Torres interacting with § 87(2)(b) and he did not hear Sgt. Torres tell § 87(2)(b) "All you fucking Puerto Ricans are the same," or hear her make any other discourteous or offensive statements. Sgt. Torres informed PO Rodriguez of the charges against the individuals and PO Rodriguez went to the 73rd Precinct stationhouse to process the arrests after being at the location for approximately 15 minutes.

At the stationhouse, PO Rodriguez acknowledged that § 87(2)(b) used the bathroom during his arrest processing. PO Rodriguez did not observe any officer throw § 87(2)(b) into the wall inside of the bathroom or restrict his breathing by placing their elbow into § 87(2)(b), § 87(2)(b), § 87(2)(b)'s neck. PO Rodriguez spent approximately 30 minutes with § 87(2)(b) while processing his arrest inside of the stationhouse; § 87(2)(b) did not complain of any injury and he did not have any apparent injuries.

At approximately 5:10 p.m., § 87(2)(b) arrived at the stationhouse and PO Rodriguez provided her with keys and other items that belonged to her family members. PO Rodriguez did not recall whether § 87(2)(b) requested Sgt. Torres' name and/or shield number or whether she intended to file a complaint. PO Rodriguez denied refusing to file a complaint against Sgt. Torres.

On December 7, 2009, at 12:25 p.m., PO Rodriguez returned to the command because his vehicle had mechanical problems; however, he did not recall whether he encounter § 87(2)(b) at the command.

Subject Officer: PO ERICK FLORES

- PO Erick Flores is a § 87(2)(b) old Hispanic male, 5'10" tall, 195 lbs, with black hair and brown eyes. PO Flores has a burn scar surrounding his left eye. On December 3, 2009, PO Flores worked from 3:00 p.m. until 11:35 p.m. assigned to Conditions. PO Flores did not recall whether he was in plainclothes or uniform; that is at the discretion of his supervisor. On December 6 and 7, 2009, PO Flores was not assigned to duty.

Memo Book

PO Flores' memo book entries indicate that he was scheduled to begin his tour at 3:00 p.m. on December 3, 2009 and on December 6 and 7, 2009, he was RDO (encl. 24A-C).

CCRB Testimony

On February 4, 2011, PO Erick Flores was interviewed at the CCRB (encl. 25A-B). On December 3, 2009, at approximately 3:00 p.m., PO Flores was scheduled to begin his tour and would have been present at the 73rd Precinct stationhouse. PO Flores did not recall what time he arrived at the command on the date of the incident and said that it was possible that he would have been present at 2:49 p.m. when § 87(2)(b) entered into the stationhouse. PO Flores did not recall any receiving any information involving PO Kamna and § 87(2)(b) and he did not view video footage of § 87(2)(b)'s arrest. PO Flores did not recall the incident and he did not recall escorting any prisoners from the holding cell to the bathroom. PO Flores denied pushing § 87(2)(b) against a wall and placing his elbow into his neck.

Witness Officer: PO JEAN BELLEVUE

- PO Jean Bellevue is a § 87(2)(b) old black male, 6'3" tall, 205 lbs, with black hair and brown eyes. On December 3, 2009, PO Bellevue worked from 11:30 a.m. until 8:05 p.m. assigned to a foot post.

Memo Book

PO Bellevue's memo book entries indicated that at 2:10 p.m., he entered § 87(2)(b) with Sgt. Torres and PO Kamna to arrest a female § 87(2)(b). At 2:16 p.m., Sgt. Torres requested additional units to respond to the location (encl. 26A-B).

§ 87(2)(b)

§ 87(2)(b)

CCRB Testimony

On May 10, 2010, PO Jean Bellevue was interviewed at the CCRB (encl. 28A-B). On December 3, 2009, Sgt. Torres and PO Kamna entered § 87(2)(b) to make a "pick up" arrest and Sgt. Torres asked PO Bellevue to assist them. § 87(2)(b) resisted arrest. § 87(2)(b) § 87(2)(b), § 87(2)(b) and § 87(2)(b) were talking amongst themselves in Spanish; PO Bellevue who does not speak Spanish did not

understand any of their statements. Sgt. Torres responded, “If you don’t want us to do our job – don’t call us.” PO Bellevue did not hear her use any profanity. PO Kamna also responded to the family; however, PO Bellevue did not recall what was said.

Sgt. Torres and PO Bellevue walked towards the exit with § 87(2)(b) and PO Kamna stayed behind. PO Bellevue turned around when he heard a noise and he observed PO Kamna lay on the ground with § 87(2)(b) § 87(2)(b) and § 87(2)(b) on top of him. PO Bellevue did not observe how their interaction became physical. The three males were kicking and punching; however, PO Bellevue did not see any of them kick or punch PO Kamna, specifically. PO Bellevue did not observe PO Kamna punch any of the three males.

PO Bellevue approached and grabbed § 87(2)(b) by the arms and held onto him as he tried to go back towards PO Kamna. § 87(2)(b) repeated, “My father, my father;” however, PO Bellevue’s back was turned towards § 87(2)(b) § 87(2)(b) and PO Kamna and he could not say what occurred. PO Bellevue did not observe PO Kamna punch § 87(2)(b) § 87(2)(b). PO Bellevue did observe § 87(2)(b) involved in any physical interaction with PO Kamna and he did not observe PO Kamna push § 87(2)(b) in the chest.

Sgt. Torres called for additional units to respond. More than five officers responded to the location and assisted in placing § 87(2)(b) § 87(2)(b) and § 87(2)(b) into handcuffs. PO Bellevue did not recall Sgt. Torres speaking with § 87(2)(b) and he did not overhear her use any discourteous language.

At the stationhouse, PO Bellevue observed § 87(2)(b) inside of a holding cell; however, he did not know whether he interacted with any other officers at that time. PO Bellevue did not observe an officer place their arm into § 87(2)(b)’s neck inside of a bathroom. PO Bellevue did not observe the officer who fits the description interact with § 87(2)(b) at anytime. PO Bellevue did not hear Sgt. Torres tell § 87(2)(b) “Take that fucking bitch out of here before I put her in handcuffs.” PO Bellevue did not recall whether § 87(2)(b) appeared at the stationhouse.

Officers Not Interviewed

Officers Magali Malave and Steven Jehl were assigned to sector H that arrived at the location when a call for assistance was made. § 87(2)(g) Lt. Dipane requested the video surveillance from the § 87(2)(b) store; however, he did not witness any particular part of the incident.

Medical Records

§ 87(2)(b) § 87(2)(b)’s medical records indicate that he was treated on § 87(2)(b) for complaints of pain to his neck and the left side of his body. § 87(2)(b) alleged that he was “assaulted” by a police officer. He was prescribed Naprosen for pain relief and Flexeril for muscle relaxation (encl. 29A-C).

NYPD Document(s)

SPRINT § 87(2)(b)

The SPRINT indicates that two arrests were made at § 87(2)(b) at 2:16 p.m. (encl. 30A-B).

Command Log

The command log dated December 3, 2009, indicates that at § 87(2)(b) and § 87(2)(b) § arrived at the command at 2:49 p.m. They were charged with § 87(2)(a) 160.50 Both of their conditions were listed as apparently normal. The command log dated December 6, 2009, indicates that § 87(2)(b) was arrested at 1470 East New York Avenue (the 73rd Precinct stationhouse) and charged § 87(2)(a) 160.50

§ 87(2)(b)

AIDED Report

The report indicates that while effecting a lawful arrest PO Kamna was punched and kicked in the head. He was removed to § 87(2)(b) for treatment of pain and swelling to his face (encl. 31D).

Other Evidence

§ 87(2)(b) Store Surveillance Video

A surveillance video that is 32 minutes and 38 seconds in length was recorded by the § 87(2)(b) store; however, the video is not audible. § 87(2)(g) . At 9 minutes and 40 seconds, there appears to be an exchange of words between Sgt. Torres and § 87(2)(b) and § 87(2)(b) § At 8 minutes and 45 seconds into the video, Sgt. Torres and PO Kamna are effectuating the arrest of § 87(2)(b) and § 87(2)(b) § approaches. At 9 minutes and 55 seconds into the video until 10 minutes and 12 seconds, PO Kamna tries to place § 87(2)(b) § under arrest and § 87(2)(b) places himself in between § 87(2)(b) § and PO Kamna. § 87(2)(b) holds PO Kamna by the right arm and § 87(2)(b) places both of his arms in front of PO Kamna; however, it can not be determined whether he made contact with PO Kamna. PO Kamna swings a punch towards the left side of § 87(2)(b) head. It could not be determined whether contact was made. At 10 minutes and 17 seconds into the video, the group falls to the ground as PO Kamna continues in his attempt to arrest § 87(2)(b) § § continually tries to prevent § 87(2)(b) § arrest by grabbing or attempting to grab PO Kamna; he is held away by PO Bellevue. § 87(2)(b) pushes PO Kamna with one hand in the chest and he pushes her away. At 12 minutes and 24 seconds into the video, § 87(2)(b) § and § 87(2)(b) are removed from the location in handcuffs.

Summons/Arrest for Incident and Disposition

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Status of Civil Proceedings

- § 87(2)(b) has not filed a Notice of Claim with the City of New York as of January 20, 2011 with regard to the incident (encl. 32).

§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

§ 87(2)(b)

Civilian(s) CCRB History

- This is the first CCRB complaint filed by § 87(2)(b). This is also the first CCRB complaint involving § 87(2)(b), § 87(2)(b) and § 87(2)(b) (encl. 3A-D).

Subject Officer(s) CCRB History

- Sgt. Torres has been a member of the service for 10 years and there are no substantiated CCRB allegations against her (encl. 2A).
- PO Kamna has been a member of the service for 4 years and there are no substantiated CCRB allegations against him (encl. 2B).
- PO Flores has been a member of the service for 4 years and there are no substantiated CCRB allegations against him (encl. 2C).

Conclusion

Identification of Subject Officer(s)

§ 87(2)(b) identified Sgt. Torres by viewing her name on her badge at the time and place of occurrence. § 87(2)(b) described Sgt. Torres as a white female, 5'5" tall, 130 lbs, with black hair; which is similar to Sgt. Torres' physical characteristics. § 87(2)(b), § 87(2)(g)

§ 87(2)(b), § 87(2)(g)

§ 87(2)(g). He was described by § 87(2)(b) as a white male, 5'9" tall, 150 lbs, with black hair and approximately 27-years old. § 87(2)(g), § 87(2)(b)

§ 87(2)(b), § 87(2)(g). § 87(2)(b) described the officer that placed him in a chokehold as a Hispanic male, 5'9" tall, 160 lbs, with a scar on his face. § 87(2)(b), § 87(2)(g)

§ 87(2)(b), § 87(2)(g)

PO Rodriguez was identified as the arresting officer through the BADS reports and § 87(2)(b) and § 87(2)(b) identified him by name and stated that he was not present at the arrest location; however, was assigned as the arresting officer. § 87(2)(b), § 87(2)(g)

§ 87(2)(b), § 87(2)(g)

Allegations Not Pleaded

§ 87(2)(b) and § 87(2)(b) alleged that the officers used excessive physical force against § 87(2)(b) § 87(2)(g), § 87(2)(b)

§ 87(2)(b) alleged that unidentified officers entered and searched his apartment; however, § 87(2)(b) was not present at the time the officers arrived at his home § 87(2)(g), § 87(2)(b)

Investigative Findings and Recommendations

Allegation A – Discourtesy: On December 3, 2009, at § 87(2)(b) in Brooklyn, Sgt. Bertha Torres spoke obscenely and/or rudely to § 87(2)(b) and § 87(2)(b)
§ 87(2)(b) and § 87(2)(b) alleged that Sgt. Bertha Torres used discourteous language towards them by stating, “If you don’t like the way we fucking arrest then you shouldn’t have called us.” § 87(2)(b), § 87(2)(g)

Allegation B – Force: On December 3, 2009, at § 87(2)(b) in Brooklyn, PO Andrew Kamna used physical force against § 87(2)(b), § 87(2)(b), § 87(2)(b) and § 87(2)(b)

It is undisputed that PO Kamna punched § 87(2)(b) and pushed § 87(2)(b). § 87(2)(b) alleged that PO Kamna punched § 87(2)(b) more than once; § 87(2)(g) Patrol Guide Procedure 203-11, states, “All uniformed members of the service are responsible and accountable for the proper use of force under appropriate circumstances” (encl. 1A-B).

In this instance, PO Kamna tried to arrest § 87(2)(b) § 87(2) and § 87(2)(b) § 87(2)(g) knocked his hand away.

The video depicts § 87(2)(b) place both his arms in front of PO Kamna—and while PO Kamna does not appear to have been affected—PO Kamna reacted by punching § 87(2)(b) once, in accordance with his testimony. The video shows that the area is constricted and all parties were closely situated and confrontational. PO Kamna stated his intention in punching § 87(2)(b) was to create more space and place § 87(2)(b) under arrest.

§ 87(2)(b), § 87(2)(g)

§ 87(2)(b) In addition, the video shows § 87(2)(b) try to push PO Kamna away from § 87(2)(b) § 87(2)(b) and he pushes her once in the chest backward. She does not fall or injure herself. The video does not show PO Kamna punch § 87(2)(b) § 87(2)(b) and he denied doing so; however, part of § 87(2)(b) § 87(2)(b)'s arrest takes place in a location not visible by the camera.

§ 87(2)(b) did not sustain any lacerations or bruising to his face or body from the alleged physical force. He reported pain to his neck and left side of his body to § 87(2)(b) . § 87(2)(b) § 87(2)(b) and § 87(2)(b) were not injured and did not seek medical treatment. § 87(2)(g)

Allegation C – Offensive Language: On December 3, 2009, at § 87(2)(b) in Brooklyn, Sgt. Bertha Torres made remarks to § 87(2)(b) based upon race.

§ 87(2)(b) alleged that Sgt. Torres told her, “All you fucking Puerto Ricans are the same.” Sgt. Torres stated she was aware that § 87(2)(b) was Puerto Rican due to her Spanish dialect and because she is also Puerto Rican; however, she denied making the above statement and did not discuss whether § 87(2)(b) was Puerto Rican at any point during the encounter. None of the officers heard Sgt. Torres make the above statement. § 87(2)(g)

Allegation D – Abuse: On December 3, 2009 and December 7, 2009, at the 73rd Precinct stationhouse, Sgt. Bertha Torres threatened to arrest § 87(2)(b) and § 87(2)(b)

§ 87(2)(b) and § 87(2)(b) alleged that Sgt. Torres told unidentified officers to remove them from the stationhouse before she arrested them. Sgt. Torres denied threatening to arrest either § 87(2)(b) or § 87(2)(b) at any point during the several times she encountered them § 87(2)(b), § 87(2)(g)

Allegation E – Force: On December 3, 2009, at the 73rd Precinct stationhouse, PO Erick Flores used physical force against § 87(2)(b)

Allegation F – Force: On December 3, 2009, at the 73rd Precinct stationhouse, PO Erick Flores used a chokehold against § 87(2)(b)

§ 87(2)(b) alleged that PO Flores pushed him against the wall and placed his elbow into his neck and restricted his breathing for approximately one minute. PO Flores did not recall encountering § 87(2)(b) and denied taking any of the above actions. PO Flores did not recall observing any other officer take the above actions. § 87(2)(b), § 87(2)(g)

Team: _____

:

Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date